DV-105 Request for Child Custody and Visitation Orders

Case Number:

Instructions: Use this form to request orders for children you have with the person in (2). For more information on the orders you can request, read form DV-105-INFO, *Asking for Child Custody and Visitation Orders.*

This form is attached to form DV-100.

(1) Your Information

Name: _____

Relationship to children: ☐ Parent ☐ Legal guardian ☐ Other *(describe):* _____

(2) Person You Want Protection From

Name: _____

Relationship to children: ☐ Parent ☐ Legal guardian ☐ Other *(describe):* _____

(3) Children Under 18 Years Old *(For children you have with the person in (2), list from oldest to youngest.)*

a. Name: _____ Date of birth: _____
b. Name: _____ Date of birth: _____
c. Name: _____ Date of birth: _____
d. Name: _____ Date of birth: _____

☐ *(Check here if you need more space. Write "DV-105, Children" at the top and attach it to this form.)*

(4) City and State Where Children Lived *(If you do not complete this section, the judge may not be able to make custody and visitation orders.)*

a. Have all the children listed in (3) lived together for the last five years?
☐ No *(If no, complete form DV-105(A). Do not complete the section below.)*
☐ Yes *(If yes, complete the section below.)*

b. List where the children have lived for the last five years. Start with their current location.

Dates *(month/year)*	**City and State** *(include tribal land, if applies)*	**Children lived with** *(check all that apply):* **Me**	**Person in (2)**	**Other** *(relationship to child)*
From: _____ To present	_____ ☐ Check here if this address is private (confidential). List the state only.	☐	☐	☐ _____
From: _____ Until: _____	_____	☐	☐	☐ _____
From: _____ Until: _____	_____	☐	☐	☐ _____
From: _____ Until: _____	_____	☐	☐	☐ _____
From: _____ Until: _____	_____	☐	☐	☐ _____
From: _____ Until: _____	_____	☐	☐	☐ _____

This is not a Court Order.

5 History of Court Cases Involving Your Children

a. Do you know about any other case involving any child listed in 3?

☐ No

☐ Yes *(If yes, complete the section below):*

(Check all that apply. List where the case was filed (city, state, or tribe), year it was filed, and case number, if known.)

☐ Custody _____

☐ Divorce _____

☐ Juvenile Court *(child welfare, juvenile justice)* _____

☐ Guardianship _____

☐ Criminal _____

☐ Other *(example: child support case)* _____

b. Is there a current order for custody or visitation in effect?

☐ No

☐ Yes *(If yes, complete the section below):*

What did the judge order? *(Examples: who has custody of the children and what the visitation schedule is)*

_____

_____

_____

_____

(Attach a copy of the order, if you have one.)

Why do you want to change the order?

_____

_____

_____

_____

c. If there is another parent or legal guardian besides you and the person in 2, list their information below.

Name: _____ ☐ Parent ☐ Legal guardian

Orders a Judge Can Make to Protect Your Children

To ask for orders to protect your children, answer the questions below.

6 Do you want to limit where the person in 2 can travel with your children?

☐ No

☐ Yes *(If yes, complete the section below):*

I ask the judge to order that the person in 2 must have written permission from me, or a court order, to take the children outside:

☐ The county of *(list):* _____

☐ California

☐ Other places *(list):* _____

7 Do you want the person in 2 to have access to the children's records or information?

☐ Yes

☐ No *(If no, complete the section below):*

a. I ask the judge to order that the person in 2 **not** access or have access to the records or information for:

☐ All the children listed in 3.

☐ Only the children listed here *(names):* _____

b. For the following records or information *(check all that apply):*

☐ Medical, dental, and mental health

☐ School and daycare

☐ Extracurricular activity, including summer camps and sports teams

☐ Child's employment (including volunteer and unpaid positions)

☐ Other *(describe):* _____

(If the judge makes this order, providers will not be able to release the protected information to the person in 2.)

8 Do you believe the person in 2 might abduct (kidnap) your children?

☐ No

☐ Yes *(To ask for orders to help prevent abduction, you must complete form DV-108,* Request for Orders to Prevent Child Abduction, *and attach it to this form.)*

This is not a Court Order.

Child Custody

You can ask a judge to make custody orders for your children. There are two types of custody in California: legal and physical custody. For both types of custody, parents can share custody (joint) or one parent can have full custody (sole).

- **Legal custody** means the person who makes decisions about the child's health, education, and welfare.
- **Physical custody** means the person who the child regularly lives with.

Any orders made by the judge now will last until your court date (about three weeks away). On your court date, the judge can change or extend the orders.

9 Do you want the judge to make child custody orders?

☐ No
☐ Yes *(If yes, complete the section below):*

Legal Custody *(check one):*
☐ Sole to me
☐ Sole to person in 2
☐ Jointly (shared) by me and person in 2
☐ Other *(describe):*

_____

Physical Custody *(check one):*
☐ Sole to me
☐ Sole to person in 2
☐ Jointly (shared) by me and person in 2
☐ Other *(describe):*

_____

Visitation (Parenting Time) with Children

Visitation (parenting time) is the time each parent spends with the child. If a parent does not get custody, that parent can have visits, if a judge believes it is safe and in the child's best interest. Visitation orders a judge can make include:

- No visits
- Virtual or in-person visits
- Visits supervised (monitored) by a third party
- Visits not supervised

Any orders made by the judge now will last until your court date (about three weeks away). On your court date, the judge can change or extend the orders. Answer the questions below to tell the judge what parenting time you want the person in 2 to have until your court date.

10 Do you want the person in 2 to have visits (parenting time) with the children?

☐ No, I ask the judge to order no visits for the person in 2 (*Stop here. You have finished completing this form.*)
☐ Yes *(Go to 11.)*
☐ Yes, but only virtual visits *(Go to 11.)*

11 Do you want visits with the children to be supervised (monitored) by a third party?

(To learn about supervised visitations, go to selfhelp.courts.ca.gov/guide-supervised-visitation.)

☐ Yes *(Go to 12.)*
☐ No *(Go to 13.)*

This is not a Court Order.

(12) Details of Supervised (Monitored) Visits

a. **Who do you want to supervise the visits?** *(Check one):*

(1) ☐ Professional *(list name, if known):* _____

Professional fees paid by: Me ____ % Person in (2) ____ % Other: _____ ____ %

(2) ☐ Nonprofessional, like a trusted relative or friend
(Name): _____ ☐ Check here if the person has agreed to supervise visits.

b. **Location of visits** *(check one):* ☐ In person at a safe location ☐ Virtual visit (not in person)
☐ Other *(describe):* _____

c. **How often and how long should the visits be?** *(Check one):*

☐ Once a week, for *(number of hours):* _____
☐ Twice a week, for *(number of hours):* _____ each visit.
☐ Other *(describe):* _____
☐ Check here if you want to use the chart listed below for a schedule.

Plan for Supervised Visits Time		Virtual visit with person in (2)	Person to bring children to and from visit *(or make available for virtual visit)*	Location of drop-off/pick-up
Monday	Start: End, if applies:	☐		
Tuesday	Start: End, if applies:	☐		
Wednesday	Start: End, if applies:	☐		
Thursday	Start: End, if applies:	☐		
Friday	Start: End, if applies:	☐		
Saturday	Start: End, if applies:	☐		
Sunday	Start: End, if applies:	☐		

Follow the plan listed above *(check one):*
☐ Every week ☐ Every other week ☐ Other _____

Start date for visits *(month, day, year):* _____

(!) (If you completed (12), you are done completing this form. Do not complete (13).)

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Case Number:

13 Details of Unsupervised Visits

a. If the judge allows the person in 2 to have unsupervised visits with your children, you will have to tell the judge how you want to handle drop-off and pick-up of the children, also called exchanges.

Do you want exchanges to be supervised by a third party?

☐ No ☐ Yes *(If yes, do you want a professional or nonprofessional to supervise? Check 1 or 2.)*

(1) ☐ Professional *(list name, if known):* _____

Professional fees paid by: Me ____ % Person in 2 ____ % Other: _____ ____ %

(2) ☐ Nonprofessional, like a trusted relative or friend

(Name): _____ ☐ Check here if the person has agreed to supervise exchanges.

b. **Parenting time you want the person in 2 to have with the children.**

(1) Location of visits *(check one):* ☐ In person at a safe location ☐ Virtual visit (not in person)
☐ Other *(describe):* _____

(2) Give details including when visits will happen, how often the visits should be, and who will be responsible for transporting the children. *(Use the lines or chart below):*

_____

_____

Plan for Unsupervised Visits Time		Virtual visit with person in 2	Person to bring children to and from visit *(or make available for virtual visit)*	Location of drop-off/pick-up
Monday	Start: End, if applies:	☐		
Tuesday	Start: End, if applies:	☐		
Wednesday	Start: End, if applies:	☐		
Thursday	Start: End, if applies:	☐		
Friday	Start: End, if applies:	☐		
Saturday	Start: End, if applies:	☐		
Sunday	Start: End, if applies:	☐		

Follow the schedule listed above *(check one):*
☐ Every week ☐ Every other week ☐ Other _____

Start date for visits *(month, day, year):* _____

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For your protection and privacy, please press the Clear This Form button after you have printed the form.

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